

9:00 A.M.

Calendar Lines # 2

Case Name Trisha Cardenas et al vs Avalonbay Communities, Inc. et al.

Case No. 24CV450235

Motion to Strike

I. BACKGROUND

On September 9, 2025, Defendants Avalonbay Communities, Inc. et al., filed a motion to strike a portions, punitive damages, of Plaintiff Trisha Cardenas' First Amended Complaint ("FAC"). Defendants aver that the plaintiff fails to plead specific facts alleging "oppression, fraud, or malice" required to support an award of punitive damages under Civil Code section 3294(a). The motion was accompanied by a proof of service indicating electronic service on the same day.

Plaintiff filed its FAC on August 8, 2025. Defendants seeks to strike the punitive and exemplary damages portions alleged on page 12 of the plaintiff's FAC under ¶ 2 (approximately line numbers 21-22) that allege: "For punitive and exemplary damages against all named and DOE Defendants in the statutorily prescribed amounts or amounts to be proved at trial."

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure 436, subdivision (a), the court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code of Civ. Proc., § 436(b)). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code of Civ. Proc., § 436). The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code of Civ. Proc., § 437). In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63). "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768).

III. ANALYSIS

Defendant meets its burden. Further, no opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to strike the punitive damages portion of the plaintiff's FAC. Specifically, punitive and exemplary damages portions alleged on page 12 of the plaintiff's FAC under ¶ 2 (approximately line numbers 21-22) that allege: "For punitive and exemplary damages against all named and DOE Defendants in the statutorily prescribed amounts or amounts to be proved at trial." The Court will prepare the Order.

Calendar Lines # 3-4
Case Name Adriana Guicho vs General Motors, LLC.
Case No. 24CV452605
Motion to Strike (Line # 3) and Demurrer (Line # 4) Before the court is Defendant General Motors, LLC’s (“GM”)’s motion to strike punitive damages from Plaintiff Adraian Guicho’s (“Guicho”) First Amended Complaint (“FAC”) (Line #3) and demurrer to Plaintiff’s FAC (Line #4). The Court addresses Defendant’s Demurrer (Line #4) first and then the Motion to Strike (Line #3). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Background portion is addressed in the Demurrer analysis. <u>DEMURRER (LINE # 4)</u> <u>I. BACKGROUND</u> On or about March 15, 2017, Plaintiff Guicho entered into a warranty contract with defendant GM regarding a 2017 Chevrolet Colorado vehicle (vehicle identification number: 1GCGSBEA2H1187494) (“Subject Vehicle”). (First Amended Complaint (“FAC”), ¶6). Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, transmission defects, engine defects, and electrical defects. (FAC, ¶11). Said defects/ non-conformities substantially impair the use, value, or safety of the Subject Vehicle. (FAC, ¶12). Defendant GM has failed to either promptly replace the Subject Vehicle or to promptly make restitution. (FAC, ¶14). On November 25, 2024, Plaintiff filed a complaint against defendant GM asserting causes of action for: (1) Violation of subdivision (d) of Civil Code section 1793.2 (2) Violation of subdivision (b) of Civil Code section 1793.2 (3) Violation of subdivision (a)(3) of Civil Code section 1793.2 (4) Breach of the Implied Warranty of Merchantability (5) Fraudulent Inducement – Concealment On January 31, 2025, defendant GM filed a demurrer and motion to strike Plaintiff’s complaint. On August 14, 2025, prior to a hearing on defendant GM’s demurrer and motion to strike, Plaintiff filed the now operative FAC which continues to assert the same causes of action asserted in Plaintiff’s original complaint. On September 9, 2025, defendant GM filed the two motions now before the court, a demurrer to Plaintiff’s FAC and a motion to strike the prayer for punitive damages from Plaintiff’s FAC. <u>II. LEGAL STANDARD</u> Code of Civil Procedure section 871.21 sets forth only three circumstance in which the six-year limit “shall be tolled.” (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with [Code of Civil Procedure] Section 871.24, which time period shall not exceed 60 days.